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Submitter Information

Name: Chuck Slavin



General Comment

Public Comment on Protecting Actors' and Broadcasters' Image, Likeness, and Biometric Data Usage in the Development of the AI Action Plan

Esteemed National Science Foundation,

I am submitting this comment in response to the Request for Information (RFI) on the development of the Artificial Intelligence (AI) Action Plan, with a specific focus on the use, storage, and replication of actors' and broadcasters' images, likenesses, and biometric data. As AI technologies advance, it is imperative that the AI Action Plan incorporates robust protections for these individuals, drawing on existing legislative efforts to address the intersection of artificial intelligence, data privacy, and intellectual property rights.

Actors' and Broadcasters' Image and Likeness Protection

The rapid evolution of AI has made it increasingly feasible to replicate and manipulate the images, voices, and likenesses of actors, broadcasters, and other public figures, often without their consent. These attributes are not only integral to their professional identities but also critical to their livelihoods. Existing legislative efforts, such as California's AB 2602 (signed into law on September 17, 2024), provide a strong foundation by requiring explicit consent and detailed contractual specifications for the use of AI-generated digital replicas of a performer's voice or likeness. Similarly, the federal "Nurture Originals, Foster Art, and Keep Entertainment Safe Act" (NO FAKES Act), introduced in the U.S. Senate in July 2024 and the House in September 2024, aims to establish a property right over digital replicas, holding individuals and platforms liable for unauthorized use. I urge the AI Action Plan to build on these measures by mandating consent for any AI-generated use of likenesses—whether in entertainment, advertising, or beyond—and by implementing safeguards to prevent misuse, ensuring individuals retain autonomy over their image, voice, and persona.

Biometric Data Usage and Privacy

The proliferation of AI-driven technologies, such as facial recognition and voice synthesis, has heightened the risks associated with biometric data collection, storage, and replication. This highly sensitive data can be exploited, threatening individuals' privacy, safety, and dignity. Tennessee's Ensuring Likeness Voice and Image Security (ELVIS) Act, effective July 1, 2024, explicitly protects an individual's voice as a property right, offering a model for addressing biometric data in AI contexts. Additionally, California's AB 1836 (signed into law on September 17, 2024) extends posthumous protections by prohibiting unauthorized commercial use of deceased performers' digital replicas without estate consent. The AI Action Plan should adopt and expand upon these precedents by establishing stringent regulations for biometric data, including robust security measures to prevent unauthorized access, clear rights for individuals to access and revoke consent for its use, and mandates for data deletion when no longer needed.

Transparency and Accountability:

Transparency is a cornerstone of ethical AI deployment. Actors and broadcasters must be informed about how Actor's and Broadcaster's biometric data, images, and likenesses are utilized in AI systems. The federal "Content Origin Protection and Integrity from Edited and

Deep faked Media Act” (COPIED Act), introduced in July 2024, exemplifies this principle by requiring provenance data to identify AI-generated content, empowering creators to track and control its use. Organizations leveraging such data should be held accountable through clear guidelines on AI model training and data sourcing, as well as regular audits to ensure compliance with privacy laws and ethical standards. The AI Action Plan should integrate these accountability mechanisms to foster trust and responsibility in AI development.

Conclusion

The AI Action Plan must prioritize comprehensive protections for actors, broadcasters, and others whose images and biometric data are implicated in AI technologies. By drawing on existing bills—such as California’s AB 2602 and AB 1836, Tennessee’s ELVIS Act, and federal proposals like the NO FAKES Act and COPIED Act—policymakers can craft a framework that safeguards individual rights, ensures privacy, and promotes ethical AI innovation. I appreciate the opportunity to contribute to this vital discussion and strongly encourage the inclusion of these measures in the AI Action Plan to address the challenges posed by AI in a rapidly changing digital landscape.

In Unity, Chuck Slavin